



POLICE DEPARTMENT

September 24, 2020

-----X
In the Matter of the Charges and Specifications :

- against - :

Detective Steve Richards :
Tax Registry No. 937372 :
Fugitive Enforcement Division :

Case No.
2018-19458

Detective William Vargas :
Tax Registry No. 942652 :
78 Detective Squad :

Case No.
2018-19459

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Jeannie Elie, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondents:

Marissa Gillespie, Esq.
Karasyk & Moschella, LLP
233 Broadway – Suite 2340
New York, NY 10279

To:
HONORABLE DERMOT F. SHEA
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2018-19458

1. Detective Steve Richards, on or about June 20, 2017, at approximately 1600 hours, while assigned to Brooklyn South Warrant Section and on duty, abused his authority as a member of the New York City Police Department, in that he entered [REDACTED] in Brooklyn without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

2. Detective Steve Richards, on or about June 20, 2017, at approximately 1600 hours, while assigned to Brooklyn South Warrant Section and on duty, abused his authority as a member of the New York City Police Department, in that he searched [REDACTED] Street in Brooklyn without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

3. Detective Steve Richards, on or about June 20, 2017, at approximately 1600 hours, while assigned to Brooklyn South Warrant Section and on duty, while inside of [REDACTED] Kings County, abused his authority as a member of the New York City Police Department, in that he threatened to arrest Christina Clarke without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

Disciplinary Case No. 2018-19459

1. Detective William Vargas, on or about June 20, 2017, at approximately 1600 hours, while assigned to Brooklyn South Warrant Section and on duty, abused his authority as a member of the New York City Police Department, in that he entered [REDACTED] in Brooklyn without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

2. Detective William Vargas, on or about June 20, 2017, at approximately 1600 hours, while assigned to Brooklyn South Warrant Section and on duty, abused his authority as a member of the New York City Police Department, in that he searched [REDACTED] [REDACTED] in Brooklyn without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

3. Detective William Vargas, on or about June 20, 2017, at approximately 1600 hours, while assigned to Brooklyn South Warrant Section and on duty, while inside of [REDACTED]

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

██████ Kings County, wrongfully used force, in that while Thomas Angello's right wrist was handcuffed, he forcibly pulled on the other side of the handcuffs without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me, by video, on August 25 and August 26, 2020; each Respondent consented to the trial being conducted by video. Respondents, through their counsel, both entered pleas of Guilty to Specifications 1 and 2, and Not Guilty to Specification 3. The CCRB called Christina Clarke and Thomas Angello as witnesses, and introduced a video recording that captured a portion of the incident. Each Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find as follows:

Respondent Richards:

Specification 1 (entry): Pleded Guilty

Specification 2 (search): Pleded Guilty

Specification 3 (threat of arrest): Not Guilty

Respondent Vargas:

Specification 1 (entry): Pleded Guilty

Specification 2 (search): Pleded Guilty

Specification 3 (force): Not Guilty

Recommended penalty: Five (5) vacation days for each Respondent.

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

ANALYSIS

On the afternoon of June 20, 2017, Respondents, members of Brooklyn South Warrants, were conducting surveillance at a single-family home in Brooklyn, New York, in an effort to apprehend an individual (hereinafter "the subject") who was wanted in connection with a felony assault. The detectives also were in possession of an open bench warrant for the subject; the warrant, however, listed a different address as the subject's residence. Nevertheless, minutes after observing the subject exit and re-enter the location, Respondents entered the home and proceeded to search for the subject. Respondents concede that they did not have a search warrant for the location, did not have a reasonable basis for believing that the subject resided there, and did not have consent to enter and search. The subject eventually was apprehended by ESU in the attic, which was accessed from one of the bedrooms, and a firearm was recovered from the bedroom as well.

At the time of the incident, Christina Clarke and her brother, Thomas Angello, resided at the location along with other family members, including their 91-year old grandmother. Each of them had a bedroom on the second floor, and they all were present when the detectives entered their home. Respondents have each pleaded guilty to wrongfully entering and searching the premises. The remaining issues are whether Respondent Richards wrongfully threatened to arrest Clarke without sufficient legal authority, and whether Respondent Vargas used force against Angello without police necessity by forcibly pulling on his handcuffs.

Christina Clarke, age 24, testified that she is the fiancée of the subject of the bench warrant, and they have a child in common who was eight-months old at the time of the incident. The subject did not live at Clarke's home, but often visited and occasionally spent the night. At about 1600 hours on the date of the incident, she was upstairs with her child when she heard a

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

commotion downstairs. Clarke went downstairs with her child in her arm and observed Angello standing by the front door, as officers, including Respondents, walked into the home. Angello asked if the police had a warrant, but received no reply. Clarke, who was still holding her child, backed up toward the staircase leading to the second floor, as Respondent Richards approached; she told him that she did not want the police to go upstairs, since her ill 91-year-old grandmother was up there. Clarke testified that she was aware the subject was somewhere inside the location at the time, though she claimed she did not specifically see him. She denied that the subject had just been sitting on the couch before running upstairs. (Tr. 48-49, 52, 54, 56, 58, 102-05, 107-09)

Respondent Richards asked Clarke to move out of the way so that he could go upstairs, but she refused. According to Clarke, Respondent Richards pushed her aside and proceeded to the second floor along with other officers, as Clarke followed behind shouting vulgar insults at him. Respondent Richards went into her grandmother's bedroom, while Respondent Vargas looked inside Clarke's bedroom to see if anyone was there. Everyone then moved back into the hallway, where Respondent Vargas knocked on the bedroom door of Angello, while Respondent Richards talked on his phone. Angello was saying "vulgar things" to the officers while he was using a phone to record what was happening, holding the phone within a foot of Respondent Vargas's face. The police asked Clarke and Angello four or five times to go downstairs, but they refused since they weren't shown a warrant. Respondent Vargas grabbed Angello's arm and handcuffed his right hand. Clarke testified that Angello then raised his right hand above his head, and Respondent Vargas pulled down on the handcuffs a few times in order to bring them into position to handcuff Angello's other hand. Respondent Vargas then "dragged" Angello to the staircase, and handed him off to another officer who brought Angello downstairs. (Tr. 61, 65-66, 68, 72-74, 77-78, 110-11, 118-20)

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

Clarke testified that ESU arrived, and she went back upstairs to prepare her grandmother to leave the home. Respondent Richards came to the room and calmly apologized for having pushed passed her on the stairwell. He asked Clarke whether she knew the location of the subject, and she responded that she did not know what he was talking about. Clarke claimed that Respondent Richards then said to her, "I hope that you have somebody to care for your child once we find him," which Clarke interpreted as a threat to arrest her. Clarke testified that at the time of this conversation, she was aware that there was an open complaint against the subject for allegedly slashing another woman, and she acknowledged that she did not tell the truth to Respondent Richards because she did not want her boyfriend to go to jail. She also testified that she did not know where in the house one could gain access to the attic, even though she lived in the house most of her life. (Tr. 80-81, 105-06, 115, 123)

Thomas Angello testified that he woke up at about 1500 hours on the day of the incident, and went downstairs to the dining room, where he was talking with Clarke for 15-20 minutes before the police knocked on the door. He answered the door and Respondent Richards told him that they had reason to believe that the subject was present, and wanted to search for him. Angello replied that the subject did not live there, and the police needed a warrant to search. According to Angello, Respondent Richards pushed him aside and entered the house, followed by Respondent Vargas and other officers. Angello testified that he had not seen the subject get up from the couch and run up the stairs; indeed, Angello claimed he did not see the subject anywhere inside the location. (Tr. 108-09, 136-42, 184-92)

Once inside, the officers told Clarke, who was holding her son as she stood on the steps leading to the second floor, to move aside. Respondent Richards pushed her out of the way into the wall, and proceeded up to the second floor along with Respondent Vargas and two other

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

officers. Angello testified that he followed them upstairs, and began to record their actions with his phone. After searching Clarke's room, Respondent Vargas knocked on Angello's bedroom door, which was locked. Angello was yelling angrily and cursing at Respondents, and was within arm's length of Respondent Vargas, with his phone extended even closer. Respondent Vargas told him, one time, to go downstairs. When Angello refused, Respondent Vargas lunged at him and placed a handcuff on Angello's right wrist; Angello acknowledged that he did not want to be handcuffed. According to Angello, Respondent Vargas then yanked on the loose side of the handcuffs, at least four or five times, in order to pull Angello's arm behind his back so that Angello's left wrist could be handcuffed as well, which was done with the assistance of another officer; Angello, however, denied that he tried to pull his right arm away. Angello testified that "excruciating" pain shot through his arm, and he felt like his wrist was broken. Respondent Vargas grabbed a hold of the handcuffs, and with the aid of other officers "dragged" Angello down the stairs, as Angello complained about the pain to his wrist. Other officers placed Angello into a police car, where he fell back on the handcuffs, which were too tight. (Tr. 143-51, 155-62, 192-99, 206-07, 217-21)

After about two-and-one-half hours, Respondent Vargas uncuffed Angello and released him without charges. Angello testified that he went to the hospital on his own later that day. He also contacted an attorney the next day and filed a lawsuit against the City seeking two million dollars; that lawsuit was terminated when Angello temporarily relocated and lost contact with his attorney. (Tr. 165-66, 179-80, 182, 209-10, 216)

In the video recording made by Angello (CCRB Ex. 1), Respondent Vargas can be seen knocking on Angello's bedroom door, while Respondent Richards, a few feet away, is speaking on his phone with another detective. Clarke is screaming at the detectives, repeatedly asking

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

“where’s the warrant,” and Angello curses at them as he is recording. Respondents, in contrast, appear composed and show restraint; at no point do they curse or scream at Clarke or Angello. Several times during the recording, which lasts just under two minutes, Angello appears to hold the phone within inches of Respondent Vargas’s face. At the 0:47 mark, Respondent Vargas can twice be heard telling Angello that he needs to wait downstairs; Angello does not comply and continues making vulgar comments toward the detectives, telling them to “suck my dick, my whole dick.” At 1:47, Respondent Vargas again instructs Angello to go downstairs, but Angello refuses. The video ends a few seconds later when Angello’s phone appears to fall from his hands, presumably at the point where he is being handcuffed.

The medical records from Kingsbrook Jewish Medical Center (CCRB Ex. 3), list Angello’s chief complaint as pain to the right wrist from being handcuffed by the police; he was able to move his fingers, but unable to make a fist. The medical finding confirms a small fracture, a “tiny ulnar styloid avulsion fracture fragment measur[ing] 2mm, age-indeterminate and possibly acute.” Angello was prescribed ibuprofen and discharged. A photograph taken by Angello (CCRB Ex.4) shows what appears to be marks on his wrist from being handcuffed. Angello also recorded a short video of his injuries (CCRB Ex. 2), which shows the red marks around his wrist from the handcuffs, and he demonstrates his inability to make a fist. There also appears to be red scarring closer to his thumb, but that, according to Angello, was the result of a gunshot wound he received several years earlier. Angello also had an infection in his right hand that required surgery in January of 2017. According to Angello, the doctor at the hospital told him that the injury to his wrist “could have come from the handcuffs.” (Tr. 167-68, 172-75, 213-14, 221-23)

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

Respondent Richards testified that a supervisor had asked him to conduct surveillance at the location looking for the subject; this was not Respondent Richards' case, but from previous work he was familiar with the subject as a gang member. He and Respondent Vargas parked in front of the house sometime between 1500 and 1530 hours. When Respondent Richards observed the subject briefly step outside to retrieve a dog, and then re-enter the location, the detective called his supervisor to ask for further guidance; the supervisor instructed him to request back-up units, and then enter the single-family home in order to apprehend the subject. (Tr. 267-71, 312-13, 318-19)

When the back-ups arrived, Respondent Richards went to the front of the location, while Respondent Vargas covered the rear. Respondent Richards knocked on the door, which was answered by Angello, and the detective stated that they were looking for the subject. Angello walked away, and Clarke came to the door. Respondent Richards testified that he observed the subject sitting on a couch in the living room. The detective told Clarke he was looking for the subject; Clarke responded that there was no one there by that name, even though Respondent Richards was looking right at him. The subject looked toward the door then ran up the stairs. Respondent Richards entered the house and walked toward the steps, but Clarke positioned herself in front of him at the foot of the stairs, trying to block him from going up. Respondent Richards told Clarke that he could arrest her for obstructing governmental administration, and then was able to slide by without shoving Clarke out of the way. (Tr. 272-75, 300, 321-28, 333-34)

Once upstairs, Respondent Richards went to check a bedroom to the right, while Respondent Vargas checked a room on the left. Clarke and Angello followed the detectives upstairs and were screaming and insulting them in the hallway as the detectives stood by the door

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

to Angello's room, which was blocked by some objects from the inside. Respondent Richards testified that he received a text from the assigned detective saying they had received a tip that the subject was hiding in the attic, and he briefly spoke with the assigned detective. Respondent Richards heard Respondent Vargas tell Angello to step back multiple times, but Angello did not comply. Respondent Richards went downstairs to speak with the assigned detective, and did not see Respondent Vargas handcuff Angello, who was brought down in handcuffs by two other officers, and was not complaining about being in pain. (Tr. 277-78, 280-81, 284-86, 292-93, 329-33, 338-39)

When he returned upstairs, Respondent Richards spoke with the grandmother, who confirmed that the subject was Clarke's boyfriend. She expressed her concern about the rundown state of affairs in the house, and Respondent Richards reassured her that they would try to remove the subject from the location. He also spoke with Clarke: he explained to her what the police were doing, and apologized for being inside her home, but he insisted he never said anything to her about needing someone to care for her child. Respondent Richards testified that he then was able to push open the door to Angello's bedroom, and saw a firearm on the bed. He also observed sheetrock debris that had fallen from the attic. Rather than proceed to the attic, Respondent Richards called for ESU, who came to the house and apprehended the subject in the attic. (Tr. 278-79, 281-82, 295-301, 336-38)

Respondent Richards acknowledged that he made a mistake by entering the house and searching for the subject without a search warrant. He explained that at the time of the incident, he was under the mistaken belief that seeing the subject inside the location, combined with the bench warrant, was sufficient to justify entry into the home, even though he knew that the subject did not reside there. He has since reviewed the Department's training manual and the New York

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

Criminal Procedure Law, and now understands that a search warrant is required to enter a third party's residence. (Tr. 302-03)

Respondent Vargas testified that when he entered the location, he observed Clarke trying to block Respondent Richards from going up the stairs to the second floor. Respondent Richards made it past Clarke without shoving her, and Respondent Vargas followed him upstairs. Respondent Vargas checked one bedroom, did not see the subject, then tried to check another bedroom; the door to that room was blocked from the inside, so Respondent Vargas knocked on the door. Clarke and Angello had followed the detectives upstairs, and were screaming and cursing at the detectives. Angello came within inches of Respondent Vargas's face, and Respondent Vargas told him numerous times to go downstairs. When Angello refused, Respondent Vargas grabbed his hand and placed it in handcuffs. Angello acted as if he did not want to be handcuffed; he repeatedly tried to pull his arm away from the back making it difficult for Respondent Vargas to handcuff the other hand, which he eventually was able to do. Respondent Vargas then handed Angello off to other officers, who brought him downstairs. Respondent Vargas did not hear Respondent Richards threaten to arrest Clarke or say anything to her about needing somebody to watch her baby because she was going to be taken into custody. After the subject was apprehended, Respondent Vargas uncuffed Angello and released him; Angello did not complain of any pain. (Tr. 350-60, 374-77, 382-88, 397-99)

Like his co-Respondent, Respondent Vargas readily admitted that it was improper to enter and search the home without a search warrant. At the time of the incident, he believed that since he observed the subject inside the location, and had a bench warrant for him, that he was authorized to enter the location and arrest him, a belief he now described as "misguided." Respondent Vargas testified that he has since reviewed training materials, and insisted that in the

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

future, he “absolutely” will obtain a search warrant before entering a third-party residence. (Tr. 361-63)

Each Respondent pleaded guilty to the first two specifications, for wrongfully entering and searching the home. It is well-settled that a bench warrant permits entry into premises to apprehend a subject, provided the officers reasonably believe that the subject resides at the location, and that at the time of the entry they reasonably believe the subject to be present. Otherwise, police need a search warrant in order to enter and search a third party’s home. Here, the detectives observed the subject enter the home, and so they had reason to believe he was present. However, they did not have a reasonable basis for believing that the subject resided at the location, and so their entry and search of the location constituted misconduct, which they each candidly admitted.

At issue are the remaining counts against each Respondent: Respondent Richards is charged with wrongfully threatening to arrest Clarke, while Respondent Vargas is accused of using excessive force against Angello by forcibly pulling on his handcuffs without police necessity. Neither of these alleged acts was captured on video recording, so the CCRB relies primarily on the testimony of Clarke and Angello.

Whereas Respondents Richards and Vargas testified consistently and logically, and appeared composed and professional in the portion of the incident captured on video, both Clarke and Angello came across as unreliable narrators regarding the events of June 20, 2017. Their claim that they did not see the subject inside the location was incredible: when Respondent Richards entered the house, he witnessed the subject, in plain view, in the living room; the subject then ran up the stairs, which is why the detectives immediately focused their attention on the second floor. The subject eventually was apprehended inside an attic which was accessed

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

from Angello's bedroom. Under these circumstances, for Clarke and Angello to claim they did not see the subject inside the house was completely implausible. It is clear from the credible evidence that the subject ran upstairs and into Angello's bedroom, pushed furniture against the door to prevent entry, and hid up in the attic. Clarke incredibly claimed she did not even know where to get access to the attic, even though she had lived in the house most of her life. After considering the testimony of all the witnesses, and viewing the video recording that showed how Clarke and Angello were interacting with the police, it is apparent that Clarke and Angello were well aware that the subject, the father of Clarke's child, was hiding from the police, and they were trying to interfere with the efforts of the police to find and apprehend him. With that in mind, we turn to consideration of the two remaining counts.

Specification 3 against Respondent Richards alleges he threatened to arrest Clarke without sufficient legal authority. Clarke testified that when she denied knowing the location of the subject, Respondent Richards said to her, "I hope that you have somebody to care for your child once we find him." There was no evidence to corroborate that Respondent Richards made this statement. Respondent Richards emphatically denied making any such comment. He explained that the only statement he made to her occurred at a different point in time, when she was blocking his access up the stairs; he told her that he could arrest her for obstructing governmental administration, a warning that was justified under the circumstances.

As indicated above, I found Clarke to be an unreliable witness. Respondent Richards, in contrast, came across as professional and trustworthy, and his behavior during this incident gave no indication that he would make the alleged threat. The credible evidence has failed to establish that Respondent Richards wrongfully threatened to arrest Clarke, and I find him not guilty of Specification 3.

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

Specification 3 against Respondent Vargas alleges that after Angello's right wrist was handcuffed, Respondent Vargas forcibly pulled on the other side of the handcuffs without police necessity. It is undisputed that Respondent Vargas did, in fact, handcuff Angello's right wrist. He then pulled down on the handcuffs in order to bring Angello's arm behind his back so that the left wrist could be handcuffed as well. It also is clear from the evidence that Angello sustained some injury to his right wrist, though it is uncertain whether that occurred when he was being handcuffed, when he was being brought downstairs, when he allegedly fell on the handcuffs in the police car, or some combination thereof. At issue is whether Respondent Vargas's act of pulling down on the handcuffs constituted an unreasonable use of force. I find that it did not.

Section 221-02 (11) of the Patrol Guide requires an MOS to "apply no more than the reasonable force necessary to gain control" of a subject. From the video footage in evidence, and the testimony of the witnesses, Angello plainly was agitated and angry in the moments leading up to the point where he was handcuffed. Respondent Vargas credibly testified that Angello did not want to be handcuffed; after Respondent Vargas placed handcuffs on one of Angello's hands, Angello still tried to pull that hand away as Respondent Vargas was attempting to handcuff his other hand. Clarke testified that after his right hand was handcuffed, Angello raised his right arm above his head, and Respondent Vargas yanked on his arm a few times in order to get the left hand cuffed as well. Even Angello acknowledged that Respondent Vargas had to yank on the handcuffs "four or five times" before he was able to completely handcuff Angello. Under these circumstances, it is apparent that whatever force Respondent Vargas used in pulling down on the handcuffs was necessitated by the resistance from Angello.

As such, to the extent that Angello did sustain an injury to his wrist from Respondent Vargas pulling down on the handcuffs, I find that it was due to Angello's own resistance. This

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

was not a gratuitous use of force by Respondent Vargas; rather, he used the appropriate amount of force necessary to handcuff a resisting subject. The credible evidence has failed to establish that Respondent forcibly pulled on the handcuffs without police necessity, and I find him not guilty of Specification 3.

PENALTIES

In order to determine appropriate penalties for Respondents, their service records were examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent Richards was appointed to the Department on January 10, 2005, and Respondent Vargas on July 10, 2006. Information from their personnel records that was considered in making these penalty recommendations are contained in attached confidential memoranda.

Both Respondents have pled guilty to entering and searching the location without sufficient legal authority. In an effort to apprehend a dangerous subject, they entered and searched a third-party home without obtaining a search warrant. The Fourth Amendment is designed to protect people from this type of police intrusion into the home. Counsel for Respondents argues that Respondents made a good faith mistake on June 20, 2017, and that the appropriate penalty is re-training. However, Respondents' actions cannot be excused merely because they misunderstood the relevant legal requirements; detectives in their position are responsible for knowing and applying the applicable law, and there must be some accountability.

The CCRB asks that Respondent Richards forfeit 15 vacation days, and that Respondent Vargas forfeit 25 vacation days. However, both Respondents have been found not guilty of the third specifications against them, and those penalty recommendations are excessive. For example, in a recent case a respondent forfeited seven vacation days for a similar infraction. See *Disciplinary Case No. 2018-19867* (June 26, 2020) (12-year detective with prior discipline

DETECTIVE STEVE RICHARDS
DETECTIVE WILLIAM VARGAS

forfeited seven vacation days after trial for improperly entering and searching a residence. The judge in that case noted that the respondent's "lack of thoroughness undermined his laudable effort to locate a suspect in a criminal offense.")

There are several mitigating factors present here that warrant a lesser penalty than the seven days imposed in that prior case. Neither of these Respondents has a disciplinary record. They each have been recognized with multiple medals for their police work: Respondent Richards has received six medals for Excellent Police Duty and two for Meritorious Police Duty, while Respondent Vargas has received two medals for Excellent Police Duty and one for Meritorious Police Duty. From the video footage in evidence, both Respondents remained composed in their interactions with the complainants, even in the face of a barrage of vulgar insults. Upon discovering a firearm, Respondents acted with appropriate restraint, calling their supervisor and having ESU handle the apprehension of the subject in the attic.

Moreover, each Respondent here accepted responsibility for his misconduct, admitting to improperly entering and searching the location in order to apprehend a gang member wanted for a violent felony. They both acknowledged that they had an incorrect understanding of the warrant requirements in connection with a third-party residence, and have taken steps to ensure that they won't make the same mistake again.

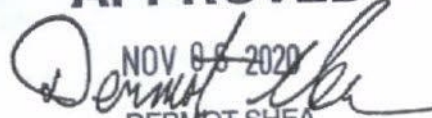
Taking into account the totality of the facts and circumstances in this matter, I recommend that each Respondent forfeit five (5) vacation days.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED



NOV 8 2020
DERMOT SHEA
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE STEVE RICHARDS
TAX REGISTRY NO. 937372
DISCIPLINARY CASE NO. 2018-19458

Respondent was appointed to the Department on January 10, 2005. On his last three annual performance evaluations, he twice received 4.5 overall ratings of “Extremely Competent/Highly Competent” in 2019 and 2020, and received a 4.0 rating of “Highly Competent” in 2018. He has been awarded six medals for Excellent Police Duty and two medals for Meritorious Police Duty. [REDACTED]

Respondent was placed on Level 1 Force Monitoring on January 19, 2012 for having received three or more CCRB complaints in one year; that monitoring was upgraded to Level 2 from March 8, 2013 to September 30, 2014 after he received additional civilian complaints.

Respondent has no disciplinary record.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE WILLIAM VARGAS
TAX REGISTRY NO. 942652
DISCIPLINARY CASE NO. 2018-19459

Respondent was appointed to the Department on July 10, 2006. On his last three annual performance evaluations, he twice received 4.5 overall ratings of “Extremely Competent/Highly Competent” in 2019 and 2020, and received a 4.0 rating of “Highly Competent” in 2018. He has been awarded two medals for Excellent Police Duty and one medal for Meritorious Police Duty.

[REDACTED]

Respondent has no disciplinary record.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials